

This shifts the burden to Plaintiff to show a legally sufficient claim that is supported by evidence sufficient to allow the court to determine whether there is a probability Plaintiff will prevail on his claims. (See, *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 568.) Although presented as a cause of action for violation of Penal Code section 632, Plaintiff's complaint is essentially a motion to exclude evidence. This is apparent as Plaintiff's opposition centers squarely on the admissibility of the recording at issue in both this matter and the underlying custody action in which the recording was sought to be used by Defendant. These evidentiary issues have been addressed by the court in the custody action.

Plaintiff's opposition presents no evidence to establish Defendant had any role in recording the subject conversation in violation of Penal Code section 632, and does not allege vicarious liability under Civil Code section 1714.1. Nor does Plaintiff present authority that one parent may be liable to another parent of the same child for that child's alleged wrongdoing. Moreover, Plaintiff does not present any evidence to overcome the litigation privilege. As such, Plaintiff has not met his burden to show a likelihood of success.

The request for attorney's fees is **DENIED WITHOUT PREJUDICE** to a separate, properly noticed motion for attorney's fees.

26CV-02115 Petition of: Daniel Villalobos, et al.

Order to Show Cause Re: Name Change

Appearance required. Appear to show proof of publication of this petition by two parents to change the name of their minor children.

26CV-02511 AgWest Farm Credit, PCA, et al. vs Hundal Farms, Inc., et al.

Motion for (1) Appointment of Receiver and (2) Preliminary Injunction in Aid of Receiver

Appearance required. A notice of stay of proceedings was filed by Plaintiff's counsel on June 2, 2026, however no documents were attached to indicate what type of court filing ostensibly induced the stay of local proceedings. Appear to address the stay and to schedule a status hearing, pending the resolution of the related matter.

In the event a stay is not appropriate, required, or approved by this Court, depending on the nature of the ancillary court filing ostensibly giving rise to a stay of local proceedings, Plaintiff's motion will be heard as originally calendared. The tentative ruling for this motion is reflected below:

Plaintiff's unopposed motion for appointment of receiver and preliminary injunction in aid of receiver is **GRANTED**.

Pursuant to Code of Civil Procedure section 564, subdivisions (b)(2), (b)(9), and (b)(11), the Court finds good cause to appoint a receiver, and that proposed receiver Randy Sugarman is qualified for appointment as receiver.

Further, the Court finds the preliminary injunction in aid of receiver is appropriate in these circumstances.

The Court will sign the order lodged with the court on May 5, 2026.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Alexandra Carl
Courtroom 9

627 W. 21st Street, Merced

Thursday, June 4, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-01782	Kelstin Group, Inc. vs. Shannon D. Simons
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Claim of Exemption – Shannon Simons

Appearance required by the judgment debtor.

25CV-02208	Midland Credit Management, Inc. vs. Isabel Nuno
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Status Review of Settlement

Appearance required. Continued from January 28, 2026. At the case management conference on November 14, 2025, counsel for plaintiff indicated the parties had reached a settlement. Appear to address the status of the settlement agreement.